

1. In any proceedings instituted under subsection (1) of section one hundred and forty-one of the Licensing Act, 1953 (which penalises the holder of a justices' licence who allows gaming or unlawful games on his premises) it shall be a defence to prove that the gaming or unlawful game to which the proceedings relate was such a lottery as is by section one of the Small Lotteries and Gaming Act, 1956 (which exempts certain small lotteries) deemed not to be an unlawful lottery.

Exemption of certain small lotteries conducted on licensed premises.
1 & 2 Eliz. 2. c. 46.
4 & 5 Eliz. 2. c. 45.

2.—(1) This Act may be cited as the Small Lotteries and Gaming Act, 1956 (Amendment) Act, 1959.

Short title and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 36

An Act to postpone the coming into force of new valuation lists under Part III of the Local Government Act, 1948, and to restrict proposals for altering the current lists; to postpone the date as from which relief under section eight of the Rating and Valuation (Miscellaneous Provisions) Act, 1955, can be terminated or reduced; and for purposes connected with the matters aforesaid.
[14th May, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section thirty-four of the Local Government Act, 1948 (which fixes the dates when new valuation lists for rating purposes are to come into force in England and Wales) shall have effect as if, for the reference to the year nineteen hundred and sixty-one, there were substituted a reference to the year nineteen hundred and sixty-three; and the period for which the valuation lists in force at the passing of this Act are to remain in force shall be extended accordingly.

Postponement of new valuation lists, and restriction on proposals for altering current lists.
11 & 12 Geo. 6. c. 26.

(2) In accordance with the preceding subsection, section thirty-four of the said Act of 1948 shall have effect as set out in the Schedule to this Act.

(3) Notwithstanding anything in section forty of the said Act of 1948 (which enables proposals to be made for the alteration of valuation lists) a proposal for altering a valuation list in force at the passing of this Act (not being a proposal made by the valuation officer)—

(a) shall not have effect if served on the valuation officer after the passing of this Act, and

- (b) shall be deemed never to have had effect if served on the valuation officer before the passing of this Act but on or after the twelfth day of February, nineteen hundred and fifty-nine,

unless (in either case) it is or was a proposal made by the owner or occupier of the hereditament to which it relates, or a proposal made by virtue of subsection (2A) of the said section forty (which enables a rating authority to make proposals with respect to hereditaments not included in the valuation list).

Postponement
of termination
or reduction
of relief for
charitable and
other organis-
ations.

4 & 5 Eliz. 2,
c. 9.

2.—(1) Subsection (3) of section eight of the Rating and Valuation (Miscellaneous Provisions) Act, 1955 (which enables a rating authority to serve a notice terminating or reducing the relief conferred by that section in respect of certain classes of hereditaments) shall have effect subject to the following provisions of this section.

(2) Where a notice served under that subsection (whether before or after the passing of this Act) specifies a year earlier than the year 1962-63, the notice (if valid apart from this section) shall have effect as if the year specified therein had been the year 1962-63, and any reference in that subsection to the year specified in the notice shall be construed accordingly.

(3) In this section "year" means a period of twelve months beginning with the first day of April, and "the year 1962-63" means the year beginning with the first day of April, nineteen hundred and sixty-two.

Financial
provisions.

3. Any increase attributable to this Act in the sums payable by way of Rate-deficiency Grant or Exchequer Equalisation Grant under the enactments relating to local government in England and Wales or in Scotland shall be defrayed out of moneys provided by Parliament.

Short title,
interpretation
and extent.

4.—(1) This Act may be cited as the Rating and Valuation Act, 1959.

(2) In this Act "the valuation officer" has the same meaning as in Part III of the Local Government Act, 1948.

(3) Subsections (2) and (3) of section sixteen of the Rating and Valuation (Miscellaneous Provisions) Act, 1955 (which relate to the interpretation of that Act) shall apply for the purposes of this Act as they apply for the purposes of that Act.

(4) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment.

(5) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULE

Section 1.

SECTION THIRTY-FOUR OF LOCAL GOVERNMENT ACT, 1948,
AS AMENDED

34.—(1) New valuation lists shall be made for all rating areas so as to come into force on the first day of April in the following years, that is to say, the year nineteen hundred and sixty-three and each fifth subsequent year. Times for making new valuation lists.

(2) Every valuation list shall remain in force until it is superseded by a new valuation list.

CHAPTER 37

An Act to amend the law in relation to the making and disposing and importation of flick knives and other dangerous weapons. [14th May, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) Any person who manufactures, sells or hires or offers for sale or hire, or lends or gives to any other person— Penalties for offences in connection with dangerous weapons.
- (a) any knife which has a blade which opens automatically by hand pressure applied to a button, spring or other device in or attached to the handle of the knife, sometimes known as a "flick knife" or "flick gun"; or
 - (b) any knife which has a blade which is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force and which, when released, is locked in place by means of a button, spring, lever, or other device, sometimes known as a "gravity knife",

shall be guilty of an offence and shall be liable on summary conviction in the case of a first offence to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and fine, and in the case of a second or subsequent offence to imprisonment for a term not exceeding six months or to a fine not exceeding two hundred pounds or to both such imprisonment and fine.

(2) The importation of any such knife as is described in the foregoing subsection is hereby prohibited.